

Babu Lal vs State Of U.P. And Others on 26 February, 2013

Author: Tarun Agarwala

Bench: Tarun Agarwala

HIGH COURT OF JUDICATURE AT ALLAHABAD

AFR

Court No.1.

Civil Misc. Writ Petition No. 15837 of 2007

Babu Lal

Vs.

State of U.P. and others

Connected with-

Civil Misc. Writ Petition No. 15282 of 2007

Babu Lal

Vs.

State of U.P. and others

And

Civil Misc. Writ Petition No. 15288 of 2007

Babu Lal

Vs.

State of U.P. and others

And

Civil Misc. Writ Petition No. 15280 of 2007

Babu Lal

Vs.

State of U.P. and others

And

Civil Misc. Writ Petition No. 15286 of 2007

Babu Lal

Vs.

State of U.P. and others

Hon'ble Tarun Agarwala,J.

Heard Sri G.K.Malviya, the learned counsel for the petitioner and Sri Raj Kumar Pandey, the learned Standing Counsel.

By means of this writ petition the petitioner has challenged the validity and legality of the order dated 26.12.2006, passed by the Chief Inspector of Government Offices, Uttar Pradesh, Administrative Reforms Department, Allahabad, by which the petitioner was compulsory retired in accordance with Rule 56(C) of the Fundamental Rules. The petitioner, in the connected writ petitions, has also challenged the order by which he was granted adverse entries for the years 1998-99, 1999-2000, 2000-01, 2001-02 and 2002-03 as well as the rejection order on his representation. All these petitions have been clubbed together and are being decided.

The petitioner contends, that at the relevant moment of time, the petitioner was working under the control and supervision of the Chief Inspector and that he was the State President of the Uttar Pradesh Government Offices Clerical Staff Association and, in his capacity as the State President, had made several complaints against the activities of the higher officers, especially against of the Chief Inspector. Since the petitioner had made a specific complaint against the Chief Inspector, adverse entries were granted malafidely, against which the petitioner made a representation to a higher authority, namely, to the Principal Secretary, Administrative Reforms Department of the Government of U.P. The Principal Secretary, instead of deciding the representation, committed an error in directing the competent authority to decide the representation, on the basis of which, the Chief Inspector illegally and arbitrarily rejected the representation against the adverse entry, on the basis of which the order of compulsory retirement was passed again by the same officer.

Having heard the learned counsel for the parties, the Court finds, that the law on compulsory retirement has been settled by a series of decisions of the Supreme Court. Rule 56 (C) of the Fundamental Rules, states as under:-

"56(C)- Notwithstanding anything contained in Clause (a) or Clause (b) the appointing authority may, at any time, by notice to any Government servant (whether permanent or temporary), without assigning any reason, require him to retire after he attains the age of fifty years or such Government servant may, by notice to the appointing authority voluntarily retire at any time after attaining the age of [forty five year] or after he has completed qualifying service for twenty years."

The aforesaid Rule clearly indicates that the Appointing Authority can retire a Government Servant after he attains the age of 50 years in public interest. The order of premature retirement is based on subjective satisfaction of the Appointing Authority and principles of natural justice has no application. However, judicial review of such an order under Article 226 of the Constitution of India is permissible on limited grounds, namely, malafides or absence of relevant evidence, that is to say, that no reasonable person could form an opinion on the basis of the evidence on the record.

In Baikuntha Nath Das Vs. Chief District Medical Officer, 1992 (2) SCC 299, the Supreme Court laid down the following principles with regard to compulsory retirement, namely:

"(i) An order of compulsory retirement is not a punishment. It implies no stigma nor any suggestion of misbehaviour.

(ii) The order has to be passed by the government on forming the opinion that it is in the public interest to retire a Government servant compulsorily. The order is passed on the subjective satisfaction of the Government.

(iii) Principles of natural justice have no place in the context of an order of compulsory retirement. This does not mean that judicial scrutiny is excluded altogether. While the High Court or this Court would not examine the matter as an Appellate Court, they may interfere if they are satisfied that the order is passed (a) mala fide or (b) that it is based on no evidence or (c) that it is arbitrary in the sense that no reasonable person would form the requisite opinion on the given material; in short, if it is found to be a perverse order.

(iv) The Government (or the Review Committee, as the case may be) shall have to consider the entire record of service before taking a decision in the matter, of course attaching more importance to record of and performance during the later years. The record to be so considered would naturally include the entries in the confidential records/ character rolls, both favourable and adverse. If a Government servant is promoted to a higher post notwithstanding the adverse remarks, such remarks lose their sting, more so, if the promotion is based upon merit (selection) and not upon seniority.

(v) An order of compulsory retirement is not liable to be quashed by a Court merely on the showing that while passing it uncommunicated adverse remarks were also taken into consideration. That circumstance by itself cannot be a basis for interference."

In *Shyam Lal Vs. State of U.P.*, AIR 1954 SC 369, the Constitution Bench of the Supreme Court held that compulsory retirement does not amount to dismissal or removal from service within the meaning of Article 311 of the Constitution of India as it is neither a punishment nor visits with loss of retiral benefits nor does it cast any stigma and that the Officer is entitled to pension.

In *Union of India Col. J.N. Singh*, 1970 (2) SCC 458. The Supreme Court held that where compulsory retirement was made in public interest and that the opinion was formed bonafidely, the correctness of that opinion could not be challenged before the Court and that it could only be challenged on limited grounds of malafides.

In *Vijai Kumar Jain, Executive Engineer in R.E.S. Vs. State of U.P. and others*, 2000 (2) UPLBEC 1508, a Division Bench of this Court held that it is settled law that entries of only 10 years, prior to the order of compulsory retirement, was only to be seen.

In the instant case, the Court also finds that the Screening Committee, had considered the service record of the petitioner of the last 10 years in forming an overall subjective opinion.

In the light of the aforesaid decisions of the Supreme Court, the Court is of the opinion that the challenge to the order of compulsory retirement can only be reviewed in a writ petition on limited grounds, namely, malafides, absence of evidence, non-consideration of relevant evidence or arbitrariness, namely, that no reasonable person could have formed the requisite opinion on the material available with the Screening Committee.

In the instant case the Court finds that for the year 1998-99, an adverse entry was granted to the petitioner by Sri M.S.Saxena, the Chief Inspector. For the year 1999-2000 and 2000-01, the adverse entry was granted by Sri Bachey Lal, the Chief Inspector and, for the year 2001-02 and 2002-03, the adverse entry was granted by Sri H.D.Padaliya, the Chief Inspector.

The order of compulsory retirement was passed by Sri Faiyyaz Ahmad, the Chief Inspector. Sri Faiyyaz Ahmad has not awarded any adverse entry against the petitioner. Sri Faiyyaz Ahmad, who was working as Chief Inspector, considered the recommendation of the Screening Committee and took a decision on it. No malafides can be imposed upon Sri Faiyyaz Ahmad. The mere fact that adverse entries were awarded to the petitioner by the Chief Inspector does not mean that the order becomes malafide when an order of compulsory retirement is passed by the Chief Inspector. The Chief Inspector is the competent authority to pass an order of adverse entry as well as to pass an order of compulsory retirement and, on this basis, the order cannot become a malafide order. The Court finds that the order of compulsory retirement had been passed by a person who is not the same person who passed the order of adverse entries. The persons, who have passed the adverse entries have not been made parties in the writ petition. Consequently, the Court is of the opinion,

that there is no arbitrariness or malafide in the order of compulsory retirement. The contention of the petitioner cannot be accepted and is rejected.

Further, the Court finds from a perusal of the Counter Affidavit that the Screening Committee considered the service record of the last 10 years as per the Government Order, and found that five successive adverse entries were made by different persons against the petitioner from the year 1998 to the year 2002-03. On the basis of this conduct, the Committee gave a recommendation which was accepted by the competent authority, namely, by the Chief Inspector and the order of compulsory retirement was passed. The Court finds, that due process of law was adopted, in which there is no error. Consequently, the writ petition filed by the petitioner against his compulsory retirement fails and is dismissed.

With regard to the writ petitions filed against the adverse entries the only ground raised is, that the order of adverse entry was passed malafidely by an authority against whom the petitioner had raised a compliant. The said person has not been arrayed as party in the writ petition and consequently, such ground cannot be accepted or taken into consideration.

It was further urged that the petitioner had made a representation to the next higher authority, i.e., to the Principal Secretary, and that his representation against the adverse entry should have been decided by the superior authority, namely, by the Principal Secretary, but, the same was not done and that the Principal Secretary wrongly directed the disciplinary authority to pass the order. The contention of the petitioner is, that the order passed by the Chief Inspector, on the review application, was wholly illegal and against Rule 4 of the Uttar Pradesh Government Servants (Disposal of Representation against Adverse Annual Confidential Reports and Allied Matters) Rules, 1995.

For facility, Rule 4 of the Rules of 1995 is extracted hereunder:

"4. Communication of adverse report and procedure for disposal of representation:-

(1) Where a report in respect of A Government Servant is adverse or critical, wholly or in part, hereinafter referred to as adverse report, the whole of the report shall be communicated in writing to the Government Servant concerned by the accepting authority or by an officer not below the rank of reporting authority nominated in this behalf by the accepting authority, within a period of 45 days from the date of recording the report and a certificate to this effect shall be recorded in the report.

(2) A Government Servant may, within a period of 45 days from the date of communication of adverse report under sub-rule (1), represent in writing directly and also through proper channel to the authority one rank above the accepting authority, hereinafter referred to as the competent authority, and if there is no competent authority, to the accepting authority itself, against the adverse report so communicated;

Provided that if the competent authority or the accepting authority, as the case may be, is satisfied that the Government servant concerned had sufficient cause for not submitting the representation within the said period, he may allow a further period of 45 days for submission of such representation.

(3) The competent authority or accepting authority as the case may be, shall within a period not exceeding one week from the date of receipt of the representation under sub-rule (2), transmit the representation to the appropriate authority, who has recorded the adverse report, for his comments, who shall, within a period not exceeding 45 days from the date of receipt of the representation, furnish his comments to the competent authority or the accepting authority, as the case may be.

Provided that no such comments shall be required if the appropriate authority has ceased to be in, or has retired from, the service or is under suspension before sending his comments.

(4) The competent authority or the accepting authority, as the case may be, shall, within a period of 120 days from the date of expiry of 45 days specified in sub-rule (3), consider the representation alongwith the comments of the appropriate authority, and if no comments have been received without waiting for the comments, and pass speaking orders.

(a) rejecting the representation; or

(b) expunging the adverse report wholly or partly

as he con

(5) Where the competent authority due to any administrative reasons, is unable to dispose of the representation within the period specified in sub-rule(4), he shall report in this regard to his higher authority, who shall pass such orders as he considers proper for ensuring disposal of the representation within the specified period.

(6) Where an order expunging the adverse report is passed under sub-rule (4), shall be communicated in writing to the Government Servant concerned.

(7) Where an order expunging the adverse report is passed under sub-rule (4), the competent authority or the accepting authority, as the case may be, shall omit the report so expunged.

(8) The order passed under sub-rule (4) shall be final.

(9) Where any matter for.

(i) communication of an adverse report.

- (ii) representation against an adverse report.
- (iii) transmission of representation to the appropriate authority for hi
- (iv) comments of the appropriate authority, or.
- (v) disposal of representation against an adverse report;

is pending on the date of the commencement of these rules, such matters shall be dealt with and disposed of within the period prescribed therefor under this rule.

Explanation:- in computing the period prescribed therefore under this rule for any matters these rules shall not be taken into account."

Under Sub Rule (2) of Rule 4 it is clear that the Government Servant may represent to the authority one rank above the accepting authority, who is called the competent authority, and the competent authority is required to decide the representation. The Rule further provides that if there is no competent authority, then the accepting authority is required to decide the representation.

The competent authority and the accepting authority have not been defined. But, in the instant case, the accepting authority is the Chief Inspector in so far as the petitioner is concerned. There is nothing on record to suggest that the Principal Secretary is the competent authority. No such averment had been made in the writ petition. Consequently, substantial compliance of Sub Rule (2) of Rule 4 had been made on the representation of the petitioner against his adverse entry. The representation was made to the Principal Secretary, who in turn referred the matter to the accepting authority, namely, the Chief Inspector, who has decided the representation by a reasoned and speaking order on various dates and has rejected the representation and has upheld the adverse entries. The order passed by the Chief Inspector rejecting the representation of the petitioner is perfectly valid and in consonance with Sub Rule (2) of Rule 4 of 1995 Rules.

It has already been stated earlier that the Chief Inspector while rejecting the representation was a different person and was not the same person, who had awarded the adverse entry. The Chief Inspector has passed a detailed order after considering all aspect while rejecting the representation.

In the light of the aforesaid, the Court does not find any error in the impugned orders. All the writ petitions fails and are dismissed.

After dismissal of the writ petition, the learned counsel for the petitioner made a statement that even after the order of compulsory retirement was passed, the petitioner is not getting any post retirement dues. Since factual narration has not been made in the writ petition, the learned Standing Counsel is unable to give a suitable reply. While recording the submissions of the learned counsel for the petitioner, the Court directs the competent authority to release all retirement benefits, i.e., due and payable to the petitioner within six weeks from the date of presentation of a

certified copy of this order, provided the petitioner complies with all the requirements that is required to be made under the law.

Order Date :- 26.2.2013 AKJ (Tarun Agarwala,J.)